



File No.: EXP202200361

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On January 3, 2022, a complaint was filed with entry registration number 000007128e2200000208 before the Spanish Agency for Data Protection against ENI PLENITUDE IBERIA, S.L. with NIF B39793294 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that on January 3, 2022, they received a phone call from the number ***TELEFONO.1 in which their personal data was known with the intention of changing their energy supply company to the complained party. Their phone number is registered on the Robinson List. Along with the notification, a document is provided proving that their phone number is on the Robinson list and a phone bill.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on March 4, 2022, as noted in the acknowledgment of receipt in the file.

On April 4, 2022, a response was received by this Agency indicating that the calling line does not belong to the data controller, but corresponds to an energy consultancy with which they had a commercial services contract that was terminated on February 4, 2022. They state that while the contract was in force, there was no exclusivity clause, so the call could have been made for a campaign of another company. They inform that they have not received any request for rights attention from the complainant and that their data has not been processed at any time, except to address the present complaint.

THIRD: On April 3, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

The service provider responsible for the calling line ALPA 57 PRODUCCIONES SL has been identified. An information request was made to ALPA57 on June 29, 2022, which was delivered on July 6 without obtaining a response; it was reiterated on August 3, which was delivered on August 9, and a response was finally obtained on August 19, stating that they have no data or recording of the complainant because they are not their client.

The receipt of the call was verified with the operator of the called number TELEFÓNICA DE ESPAÑA, S.A.U., which confirms the receipt of the complained call from the number ***TELEFONO.1 on January 3, 2022, with a total duration of 194 seconds.

Through a diligence, the operator of the calling number ***TELEFONO.1 was verified. It was confirmed with the operator of the calling number FRANCE TELECOM (now ORANGE ESPAGNE SAU) that the holder of the line is the reseller of that company ALHAMBRA SYSTEMS, S.A. with CIF A41553702 and tax address located at Calle de Albasanz, number 16, postal code 28037, Madrid. They have no record of calls on the indicated date from the calling number to the called number.

An information request was made to the entity ALHAMBRA SYSTEMS, which confirms that the holder of the line is the company RING RING CLIN SL with NIF B05359799 and address at Plaza Gabriel Lodares 4, left mezzanine, 02002-Albacete, the active service period was from 01/09/2021 (date of registration) to 31/05/2022 (date of cancellation), and there is a call from the indicated line (***TELEFONO.1) to the line ***TELEFONO.2 in the indicated time frame with a duration of over 3 minutes.

An information request was made to the entity RING RING CLIN SL, which indicates that the contracting of the user of the telephone line ***TELEFONO.2 was carried out by the company "ALPEAN SERVICIOS S.L.", provided with C.I.F. B16859357, and address at Calle Reina Victoria, 87 - PISO 3 PTA 1, 03201 Elche/Elx, Alicante, as our subcontractor, who made the client and called. RING RING CLIN SL provides in its response its address as Avenida Doctor José María Sánchez Ibáñez, nº159, Albacete 02008.

A request was made to RING RING CLIN SL for the contract with ALPEAN on December 20, 2022, which was delivered on December 21, 2022, and was reiterated on January 12, 2023, which is recorded.

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delivered on 23/1/23, both to A.A.A., without a response having been received at this Agency.

(...)

Information request made to the entity ALPEAN SERVICIOS S.L. on 29/11/22, which expired on 12/12/22.

Repeated on December 16 and January 12, 2023, by postal means, marked as absent in delivery for "not picked up at the office" on January 4, 2023, and January 31, 2023, respectively.

It is verified that their postal address is correct through consultation with the AEAT.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), the provisions established in Article 84.3) of Law 9/2014, of May 9, General Telecommunications Law (hereinafter, LGT), and according to the provisions of Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic

and location data, and subscriber directories

Article 48 of Law 9/2014, of May 9, General Telecommunications Law (in force at the time the infringement was committed), under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its section 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights: (...)

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

III

Right of opposition

In accordance with the provisions of Article 21 of the GDPR, which regulates the right of opposition:

"1. The data subject shall have the right to object at any time, on grounds relating to his or her particular situation, to personal data concerning him or her being processed based on the provisions of Article 6, paragraph 1, letters e) or f), including profiling based on those provisions. The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. Where the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning him or her, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical specifications.

6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the data subject shall have the right, on grounds relating to his or her particular situation, to object to the processing of personal data concerning him or her, unless the processing is necessary for the performance of a task carried out for reasons of public interest."

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IV

Advertising Exclusion Systems

Taking into account the content of the fourth section of Article 23 of the LOPDGDD,

"4. Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of those affected who have expressed their opposition or refusal to it. For these purposes, to consider the previous obligation fulfilled, it will be sufficient to consult the exclusion systems included in the list published by the competent control authority.

It will not be necessary to carry out the consultation referred to in the previous paragraph when the affected party has given their consent, in accordance with the provisions of this organic law, to receive the communication from the party intending to carry it out."

V

Conclusion

The present file, consisting of a commercial call allegedly made by the respondent to a person who had exercised their right to oppose receiving commercial calls, through their inclusion in the general common advertising exclusion system (Listado Robinson Adigital), violates Article 48.1.b) of the LGT, which would translate into a minor infringement according to Article 78.11 of the aforementioned LGT. In any case, the non-compliance with the aforementioned Article 48.1.b) of the LGT that would be assessed in this case fits the type of infringement classified as minor in Article 78.11 of the LGT. And according to what is established in Article 83.1 of the LGT: "1. The infringements regulated in this Law will prescribe, very serious ones, in three years; serious ones, in two years, and minor ones, in one year.

The prescription period for infringements will begin to be computed from the day they were committed. (...)". Given that the alleged call would have taken place on January 3, 2022, the infringement would be prescribed.

Thus, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

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SECOND: TO NOTIFY this resolution to ENI PLENITUDE IBERIA, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-091222

Mar España Martí

Director of the Spanish Agency for Data Protection

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